VITAL TRENDS WRAP PROGRAM
BREAKDOWN EQUIPMENT REPAIR PROGRAM

Please call our claims hotline @ 888-806-9360 option 2, immediately upon noticing any unusual mechanical issues concerning the vehicle listed below.

SUBMIT THIS EQUIPMENT REPAIR PROGRAM IMMEDIATELY VIA: VITAL TRENDS DEALER PORTAL

I. CUSTOMER INFORMATION

AGREEMENT DATE:

NAME:

EMAIL: PH#:

ADDRESS:

CITY: STATE/PROVINCE: ZIP/POSTAL CODE:

II. VEHICLE INFORMATION

VEHICLE TYPE:

FULL VIN:

VEHICLE	YEAR:	MAKE:	MODEL:
ENGINE	MAKE:	MODEL:	SERIAL#:
TRANSMISSION	MAKE:	MODEL:	SERIAL#:

ODO. READING: _____ *(please select)* MILES ❑ KM ❑

***ECM READING:** _____ *(please select)* MILES ❑ KM ❑

***ENGINE HOURS:** _____ **if applicable*

APU YEAR: MAKE: MODEL: SERIAL#: HOURS:

III. COMPONENT COVERAGE: See page 2 section A. for details.

❑ **TIER 2: BATTALION**

❑ **YES** OR ❑ **NO - Apparatus Equipment Package Option**

❑ **YES** OR ❑ **NO - Aerial Equipment Package Option**

❑ **YES** OR ❑ **NO - APU Equipment Package Option**

IV. COVERAGE TERM:

The agreement period begins on the Agreement Date listed above and expires when either the time selected has ended or the unaltered ECM/ECU reaches the mileage/km/hours term limit, whichever occurs first.

Type 3 Emergency Vehicles & Fire Apparatus
(Mark Only ONE Term Length)

❑ 2 Years / Unlimited Miles (KMs) & Hours

❑ 3 Years / Unlimited Miles (KMs) & Hours

❑ 5 Years / Unlimited Miles (KMs) & Hours

V. RETAILER INFORMATION

AR#: _____ **PO#:** _____

RETAILER NAME: PH#:

STREET ADDRESS:

CITY: STATE/PROVINCE: ZIP/POSTAL CODE:

VI. LIEN HOLDER INFORMATION (if applicable)

LIEN HOLDER NAME: PH#:

STREET ADDRESS:

CITY: STATE/PROVINCE: ZIP/POSTAL CODE:

VII. I UNDERSTAND:

This Agreement cannot be modified or altered without an approved/written addendum by the Authorized Administrator and signed by the Customer. I sign this Agreement voluntarily. I have read and fully understand the rights and responsibilities stated in this Agreement.

_____ CUSTOMER SIGNATURE DATE

_____ AUTHORIZED RETAILER SIGNATURE DATE

_____ CUSTOMER NAME (printed) DATE

_____ AUTHORIZED RETAILER NAME (printed). DATE

This is a copyright protected document. © 2024

VIII. EQUIPMENT REPAIR PROGRAM TERMS AND CONDITIONS

A. COVERAGE:

i. **TURBO PACKAGE: TURBOCHARGER(S)** includes bearings, internal variable vane assembly, turbines, turbine shaft, turbo actuator, turbocharger housing, and turbo oil return seal; charge air cooler. **FUEL PUMP(S);** fuel injector hard lines, fuel lift pump, fuel transfer pump, fuel injection pump, intake manifold, governor, and fuel tank. **ENGINE FUEL INJECTORS:** includes failed injectors and failed injector cups. Parts only coverage for fuel injector tubes and seals. **WATER PUMP** includes bearings, housing, impeller, seals, and water manifold; **no progressive damage is covered**. Fuel sender assembly; fuel pressure regulator. **The throttle body, cable, pedal & linkage, and turbo wastegate are covered only if damaged by a covered component**.

ii. **AFTERTREATMENT SYSTEMS:** [Progressive damage limited to aftertreatment system]. EVAP canister **DIESEL PARTICULATE FILTER (DPF):** The DPF filter only is covered (must have required OEM Maintenance). **EXHAUST GAS RECIRCULATION (EGR) VALVE(S):** The EGR Valve(s), EGR actuator, cooler(s), and cooler lines are covered. **DOSER VALVE:** Covered parts include cylinder valve, elbow, fitting, o-rings, pludge, transducer, and tube. **SELECTIVE CATALYTIC REDUCTION (SCR):** Covered parts include catalyst, connectors to doser, and injection system; DOC, DEF, and BPV Systems; and One Box componentry. Catalytic converter; muffler; exhaust pipes; and air injector reactor pump (smog pump).

iii. **BODY AND BOLT ON PACKAGE: BODY:** Limited to Hood/trunk/liftgate/tailgate locks; hood/trunk/liftgate/tailgate hydraulic lift support; glove box lock assembly; ignition lock assembly; plow: motor, control, switch/leaver, and hydraulic system; siren & horn. **BOLT-ON**: Auxiliary fuel tank switch-over valve; spare tire: carrier, latch, and lock; power winch: motor, roller, controller, and wire harness.

iv. **ELECTRICAL:** [Initially failed component; no progressive damage.] Shore power kit and power inverter; light bars; LED headlamp; LED fog lamp; LED spot lamp; LED tail lamp; LED warning/flashing lamps; LED running lamps; LED stop lamp; LED flood lamp; LED turn signals; light tower; and electronic control module (ECM). **STARTER**: Armature, bearings, bushings, brushes, brush holder, jumper, coil, commutator, drive assembly insulator, magnet, motor shaft lever & spring, solenoid, starter drive gear, plunger and boot. **MANUAL SWITCHES**: Light bar switch and relay; beacon lamp switch; warning lamp switch; headlamp leveling switch; headlamp flasher switch; stop lamp switch; headlamp switch; emergency disability switch; backup lamp switch; backup alarm switch; flash control switch; turn signal warning switch; turn signal operating switch; work lamp switch; and strobe light switch. Multi-function stalk lever switch; driver information display set switch; driver information display mode switch; instrument panel on/off pre-trip light switch; air pressure gauge signal switch; manifold vacuum gauge switch; engine coolant temperature indicator switch; engine metal temperature indicator switch; fuel tank selector switch; low fuel warning indicator switch; oil pressure switch; differential lockout indicator lamp switch; low hydraulic pressure signal switch; parking brake indicator lamp switch; propane cylinder cradle latch indicator switch; power steering pressure differential switch; air restriction switch; high water temperature warning override switch; traction control rocker switch; traction control switch; starter solenoid switch; air horn switch; wiper motor relay; windshield wiper control switch; power seat motors and relays; door jamb switches; power window motors and relays; electric door lock actuators; window washer fluid pumps. **WIRING HARNESSES:** Engine wiring harness; light bar wiring harness; light bar module; beacon lamp wiring harness; strobe lamp wiring harness; headlamp switch wiring harness; driving lamp wiring harness; spot lamp wiring harness; headlamp/flasher wiring harness; fog lamp wiring harness; stop/tail/turn/backup lamp wiring harness. Speedometer wiring harness; trip odometer wiring harness; distance sensor wiring harness; security system wiring harness; throttle body wiring harness; rear axle traction control wiring harness; transmission shift control wiring harness; power shift control wiring harness; transmission range selector wiring harness; transmission master wiring harness; main wiring transmission harness; shift tower wiring harness; speed sensor wiring harness; transmission shift control valve wiring harness; transmission oil pump wiring harness; automatic transmission ECU wiring harness; intake manifold temperature sensor wiring harness; EGR pressure sensor wiring harness; exhaust aftertreatment device wiring harness; aftertreatment module to sensors wiring harness; aftertreatment control module to air control unit wiring harness; aftertreatment control module to metering device wiring harness; aftertreatment control module to pump wiring harness; aftertreatment control module to tank fill level indicator wiring harness; tank fill level indicator to tank fill level gauge wiring harness; aftertreatment control module to tank heater solenoid valve wiring harness; DEF system wiring harness; DEF tank pump wiring harness; fuel pump wiring harness; electronic injectors wiring harness; engine wiring harness; electronic engine control wiring harness; transmission wiring harness; engine air temperature sensor wiring harness; engine solenoids/sending units wiring harness; air horn wiring harness; EGR valve wiring harness; exhaust gas temperature sensor wiring harness; diesel particulate filter (DPF) jumper harness; DEF tank level sensor jumper harness; ECM harness; and ambient air temperature sensor wiring harness. **SENSORS: Aftertreatment:** Exhaust oxygen (O2) sensor; exhaust temperature sensor; EGR pressure sensor; EGR position sensor; exhaust back pressure sensor; centrifugal crankcase oil separator (CCOSS) sensor; delta P sensor; back pressure valve temperature sensor; back pressure valve pressure sensor; nitrogen oxide (NOX) sensor; EGR monitor sensor; CGI cooler combustion air delta sensor; clean gas induction (CGI) cooler pressure sensor; clean gas induction (CGI) cooler temperature sensor; exhaust gas temperature sensor; exhaust aftertreatment particulate trap differential pressure sensor; doser valve pressure sensor; diesel oxidation catalyst (DOC) gas temperature sensor; ASM sensor; exhaust aftertreatment fuel control module sensor; exhaust aftertreatment pressure sensor; diesel oxidation catalyst (DOC) pressure sensor; aftertreatment regeneration flame detection temperature sensor; diesel particulate filter ammonia sensor; particulate soot sensor; catalytic converter temperature sensor; upstream DPF temperature sensor; DEF tank fill level sensor; metering device pressure sensor; metering device temperature sensor; metering device compressed air pressure sensor; input exhaust gas sensor; output exhaust gas pressure sensor; diesel exhaust system nitrogen oxide (NOX) sensor; catalytic reduction actuator (upstream) temperature sensor; catalytic reduction actuator (downstream) temperature sensor; catalytic reduction actuator temperature/fill level sensor; catalytic reduction actuator temperature/moisture sensor; selective catalytic reduction air intake humidity sensor; diesel exhaust fluid (DEF) temperature sensor; diesel exhaust fluid (DEF) quality sensor; exhaust soot sensor; compensation sensor; burner flame temperature sensor; catalytic converter (upstream) NOX sensor; catalytic converter (downstream) NOX sensor; SCR system inlet/outlet; and temperature

Customer's Initials: _____

This is a copyright protected document. © 2024
Need Help: 888-806-9360

SENSORS (continued): Engine: Temperature climatic combustion control sensor; air intake temperature sensor; intake manifold sensor; swirl flap position sensor; intake manifold temperature sensor; intake manifold temperature/pressure sensor; charge air cooler air pressure and temperature sensor; charge air cooler air pressure sensor; circuit-breaking thermostat sensor; shutterstat temperature sensor; fan clutch thermostat sensor; radiator fan temperature sensor; fan speed sensor; front cover exhaust temperature sensor; crankshaft position sensor; intake valve actuator oil pressure sensor; engine-brake brake control pressure sensor; engine position/timing sensor; atmosphere/ambient pressure sensor; ambient air temperature sensor; ECM manifold pressure sensor; mass air flow sensor; vehicle speed sensor; optimized idle sensor; engine oil temperature sensor; engine coolant temperature sensor; engine oil pressure sensor; crankcase pressure sensor; camshaft position sensor; knock sensor; throttle input absolute pressure sensor; low coolant sensor; piston coolant sensor; wideband oxygen sensor; position not specified multiple usage sensor; cylinder head temperature sensor; multiple functions temperature sensor; compressor inlet sensor; electronic engine controls humidity sensor; synchronous reference sensor; timing reference sensor; air pressure sensor misfire sensor; camshaft speed sensor; crankshaft speed sensor; oil breather centrifuge speed sensor. **Transmission:** Transmission low air pressure sensor; oil heater sensor; automated transmission gear select sensor; rail select sensor; input shaft speed sensor; main shaft speed sensor; output shaft speed sensor; automation controls hydraulic fluid level sensor; automated transmission rotary (dual) position sensor; automated transmission clutch actuator sensor; load sensor; automated transmission XY shifter position sensor; automated transmission countershaft speed sensor; automated transmission oil temperature sensor; turbine speed sensor; automatic transmission pressure transducer sensor; automatic transmission speed converter sensor; automatic transmission temperature sensor; automatic transmission oil level sensor; automatic transmission range sensor; automatic transmission oil temperature sensor; line pressure sensor; automatic transmission oil pump speed converter sensor; automatic transmission speed sensor; manual lever position sensor; overlay sensor; input sensor; output housing speed sensor; output speed sensor. **Differential:** Axle temperature sensor; power divider differential lock sensor; differential lock power switch sensor. **Turbo:** Coolant pump speed sensor; boost pressure sensor; turbocharger temperature sensor; turbocharger turbine speed sensor; turbocharger wastegate sensor; turbocharger boost sensor; pre-turbo pressure sensor; turbocharger vane position sensor; fuel tank vacuum sensor; fuel temperature sensor; fuel pressure sensor; air/fuel ratio sensor; fuel rack position sensor; fuel tank fuel level sensor; fuel/water separator sensor; fuel pump speed sensor; rail pressure sensor; throttle plate position (TPS) sensor; accelerator pedal position sensor; transmission speed sensor; driven wheel speed sensor; gaseous fuel leak detection sensor; injection control pressure (ICP) Sensor; STC viscosity sensor; fuel tank pressure sensor. **Brakes:** wheel and axle speed sensors; traction control sensor.

Additional Electrical Covered items include: Antilock brake system (ABS) electronic control unit; voltage regulator and gauge; power antenna motor and mast; cruise control assembly; fuel gauge; tachometer; outside air temperature gauge; front/rear/steer/center drive axle oil temperature gauge; axillary transmission temperature gauge; brake saver oil temperature gauge; axle oil temperature gauge; dash unit temperature gauge; engine temperature gauge; water temperature gauge; oil temperature gauge; transmission temperature gauge; instrument cluster; transfer case control module; transmission ECU module; transmission power interface module; transmission auto shift module; transmission gear module; shift selector module; electronic ignition control module; engine distributor; ignition coil; spark plug wires; fuel injection control modules; factory keyless entry transmitter and receiver; factory-installed anti-theft devices: cab alarm, transmitter, horn, relay, switch; global positioning system (GPS); heads up display (HUD); factory-installed radio; amplifier; tape player; dash-mounted CD player, and DVD player; air ride suspension ECU control module; control arm active suspension control module; collision avoidance system; power seat track assembly; power mirror motors; heated seat grids; power seat motor, relay, module, and switch; memory steering wheel motors, switches, activators, sensors, and control module.

v. **CABIN COMFORT:** HVAC air compressor, compressor clutch, and pulley; HVAC blower motor, blower motor fan, blower motor resistor, plenum blower case; HVAC heater core; HVAC temperature control head, accumulator, evaporator, condenser and condenser fan motor, orifice tube, idler pulley and bearings, serpentine belt tensioner, temperature control valve, expansion valve, AC pressure switches, rear compartment climate controls (cabin HVAC), control cables, and receiver drier; and defrost assembly, refrigerant in conjunction with a covered repair. **The air compressor mounting bracket, ductwork, and lines are covered only if damaged by a covered component.**

vi. **STEERING, SUSPENSION, AND BRAKES: SUSPENSION:** 4WD engagement actuators and 4WD manual locking hubs. **STEERING**: Rack & pinion: steering gear linkage bellows, bearing kit, housing, rack gear; steering gear, electric steering assist motor; power steering pump; power cylinder hose assembly reservoir, pulley, and lines. **The steering column shaft, couplings, bearings, intermediate shaft pitman arm, idler arm, tie rods and ends, and steering relay arm and mounting brackets are covered only if damaged by a covered component**. **BRAKES:** master cylinder, proportioning control valves, and exciter; high-pressure hydraulic pump; vacuum or hydro booster; wheel cylinders; equalizer and distributing valve.

vii. **HYBRID/ALTERNATIVE COMPONENTS:** TOTAL360™ may approve the use of certain OEM and non-OEM add-on components and systems designed to extend oil change intervals; deliver alternative fuels such as CNG, LNG, and others; reduce fuel consumption or reduce component heat, wear, and failure (Extra Components). The Extra Components are not automatically covered by this Agreement. Any initial failure and progressive damage of any kind traced to the use of unapproved or approved Extra Components will not be covered by this Agreement and are the responsibility of the Customer. Extra Components use will not void this Agreement, as long as their use is approved, in writing, by TOTAL360™ prior to the approval of this Agreement.

viii. **APPLICABLE FLUIDS, PARTS, TAXES AND LABOR.** Up to $150 in shop supplies covered per claim occurrence.

2. **APPARATUS EQUIPMENT OPTION: (Only covered if purchased)** Circulator pump(s); hydraulic pump(s); water control panel(s); water supply pump(s); fire suppression foam pump, controls & pump panels; multiplexed electrical system; stretcher power load system; hydraulic rams; slide outs: bearing; air compressor; generator. **Seals, gaskets, and/or hoses are not covered.**
3. **AERIAL PACKAGE OPTION: (Only covered if purchased)** Aerial ladder controls; turret hydraulics; remote nozzles; remote nozzle controls; turntable; boom, hydraulics, and control components. Internal component failure only. **The turret housing is covered only if damaged by a covered component. Seals, gaskets and/or hoses are not covered.**
4. **APU PACKAGE OPTION: (Only covered if purchased)** Internally lubricated hard parts limited to pistons, pistons rings, wrist pins, connecting rods, connecting rod bearings, crankshaft, main bearings, thrust washers, camshaft and cam bearings, rocker arm shafts, rocker arms, push rods, hydraulic lifters, intake and exhaust valves and guides, valve springs, oil pump and housing, oil sump and housing, valve keepers (locks), gears, timing gear cover, valve cover, and oil pan. The following related components are covered: exhaust manifold; fuel pump; fuel injection pump; injectors; and water pump, **no progressive damage**. **The engine block and cylinder head are covered if damaged by a covered component or wear-out failure showing no neglect or fault of operation; no progressive damage. Any damage resulting from a seal leak or a blown head gasket is not covered.**

Customer's Initials:

This is a copyright protected document. © 2024

B. AGREEMENT PERIOD: The term of this Agreement is based on the time selected on page 1, section IV. The term begins on the Agreement Date on page 1, section I and expires when its time limit is reached. This Agreement may be transferred ONLY to another municipality or emergency response company, one time, with an approved Inspection and ECM printout, completed Transfer Request Form, and paid fee to TOTAL360™, the Authorized Administrator, (additional paperwork may be required). For transfer questions, contact Customer Service at **888-806-9360 option 1.**

C. LIMITS OF LIABILITY: If the initial cause of the failure is traced to any component listed in section VIII., A., the initial component and any progressive damage is specific and limited to the limit of liability for that initial component; unless otherwise listed. The repair costs will be counted against the listed component's limit of liability AND the vehicle's Total Aggregate Limit unless otherwise listed. **All prices are listed in USD.**

i. **BATTALION**: TOTAL360™'s Liability shall not exceed: $20,000 combined for Turbo Package; $15,000 combined for Aftertreatment Systems; $17,500 combined for Body and Bolt On; $20,000 combined for Electrical; $5,000 combined for Cabin Comfort; $15,000 combined for Steering, Suspension, & Brakes. **The Total Aggregate Limit for BATTALION covered components shall not exceed $92,500.**
ii. **APU Package Option:** If purchased, $5,000 combined for components listed in section A, subsection 3. APU Package. This Limit of Liability is included in the Squad or Battalion Total Aggregate Limit.
iii. **Apparatus Equipment Option**: If purchased, $35,000 combined for components listed in section A, subsection 4. Apparatus Equipment Option. This Limit of Liability is separate from the SQUAD or BATTALION Total Aggregate Limit listed above.
iv. **Aerial Package Option**: If purchased, $35,000 combined for components listed in section A, subsection 5. Aerial Package Option. This Limit of Liability is separate from the SQUAD or BATTALION Total Aggregate Limit listed above.
v. Claims paid for the associated Maintenance, Wear, and Replacement Program will be deducted from the respective Limit of Liability component categories listed above.

D. THIS PROGRAM HAS ZERO STANDARD DEDUCTIBLE PER COVERED CLAIM OCCURRENCE.

E. TOWING OR MOBILE MECHANIC MILEAGE REIMBURSEMENT: Reimbursement will be calculated to the Original Equipment Manufacturer (OEM) dealer or certified repair facility, whichever is nearest to the breakdown origin. This is an added service for valid and approved claims. There is a $350 USD limit per covered occurrence and a limit of three occurrences per agreement term.

F. This section does not apply to this Equipment Repair Program.

G. REQUIRED MAINTENANCE: Required Maintenance begins on the Agreement Date and continues until all component coverage expires. TOTAL360™ has the right to deny coverage if the required maintenance is not performed according to these requirements. (OEM extended intervals honored only if OEM Standards are adhered to and approved by TOTAL360™ at inception of Equipment Repair Program). Maintenance and cleaning are not covered by TOTAL360™.

i. **Customer must have services completed by an OEM dealership or a licensed service facility.**
ii. **Customer must keep ALL receipts and work orders that verify the services performed. Logs or receipts that are handwritten and CANNOT be verified by the service facility ARE NOT accepted.** These receipts must include: correct Vehicle Identification Number (VIN), the miles/KM/hours at time of service, and date of service.
iii. **TYPE 3 Emergency Vehicle** requires the engine oil and filters must be maintained and replaced according to OEM specifications or every six (6) months/25,000 miles/500 hours (whichever occurs first) by a licensed service facility with a thirty (30) day/2,500 mile/50-hour tolerance (whichever occurs first). Additionally, the vehicle and associated components must be maintained in accordance with the NFPA (National Fire Protection Association) standards.
iv. **Transmission and Differential** fluids must be replaced according to OEM specifications or yearly (whichever occurs first) by a licensed service facility with a thirty (30) day tolerance.
v. **Aftertreatment Systems** must be maintained to OEM specifications in order to validate any claim for these components.
vi. **The vehicle's odometer and ECM must be maintained and in proper working condition. Documentation of odometer and ECM changes must be submitted to TOTAL360™.**
vii. **Apparatus Equipment and Aerial Package components** must be maintained to OEM specifications and NFPA standards in order to validate any claim for these components.
viii. **APU must be maintained according to OEM specifications or every six (6) months/1,000 hours (whichever occurs first) including oil and filter change(s).**

Customer's Initials: _____

This is a copyright protected document. © 2024

H. CLAIM PROCEDURE AND BREAKDOWN RESPONSIBILITIES:

"Breakdown" means the failure of any original or replacement part covered by this Agreement originally designed to work in normal service with proper maintenance as recommended by the OEM and mandated by this Agreement. A component will be deemed "failed" or "wear-out failure" when wear exceeds the OEM's tolerable limits. TOTAL360™ will pay for parts and labor necessary to repair or replace the approved covered parts. The price of replacement parts shall not exceed the OEM's suggested retail price for parts. Replacement parts will be the same quality as the covered parts and may include new, remanufactured, or used parts with TOTAL360™'s approval. Labor allowances are derived from the nationally recognized labor time schedules.

i. **If breakdown occurs, please call TOTAL360™ Claims immediately at 888-806-9360 option 2 - 24 hours a day/7 days a week or email: Claims@Total360.com. Customer must have services completed by an OEM dealership or licensed service facility.**
ii. **Customer must obtain authorization from TOTAL360™ prior to beginning any covered repairs**. An authorization cannot be made until all diagnostic information is received. Service center/Repair facility has 10 business days once authorization is made to complete repairs. If repairs are not completed after 10 business days, TOTAL360™ reserves the right to revoke authorization without appeal. Please contact TOTAL360™ at 888-806-9360 option 2 for a claim extension request.
iii. Customer must authorize the service center/repair facility to perform necessary diagnostic work. Customer will be responsible for the costs of diagnostics if the breakdown is not covered.
iv. Customer must provide all information as TOTAL360™ requests and provide proof of vehicle's regular maintenance as required in this Agreement (See G. Required Maintenance) within five (5) days from the day of request. Documented and verifiable proof that the Required Maintenance was performed will be required prior to any authorization for repairs. If Customer fails to provide any requested documents within this time period, TOTAL360™ may deny the claim.
v. Upon the report of a claim, Customer and/or the service center/ repair facility must follow up with TOTAL360™ within 15 days with the following information: **estimates** (including detailed cause of failure, failed components, and detailed list of required parts and labor costs), **a recent time stamped ECM fault code history report** (must include current ESN/VIN and show first & last occurrences of active/inactive codes prior to clearing history for diagnostics), **pictures of failed components, picture(s) of corresponding NFPA tag(s) (if applicable), current odometer and ECM miles/km/hours**, and/or anything requested by the TOTAL360™ Claims Administrator. If neither customer nor the service center/repair facility contacts TOTAL360™ within this time period, TOTAL360™ may deny the claim. **Clearing history for diagnostics before reporting active/inactive fault codes to TOTAL360™ may result in denial of a claim.**
vi. **Allow TOTAL360™ to examine/inspect the vehicle, if requested.**
vii. Final decisions regarding the initial cause of failure are determined by TOTAL360™.
viii. **Claims are paid directly to the service center/repair facility only.**
ix. Upon completion of authorized repairs, service center/repair facility must provide confirmation of road test, and submit part/labor warranty information, verification of payment for non-covered balance, and final invoice. This information must be received, and all monies paid prior to release of the vehicle.

I. HOW THIS AGREEMENT IS CANCELLED OR VOIDED:

i. TOTAL360™ may void this Agreement for (a) non-payment or return of any charge when due, (b) misrepresentation by Customer entering into this Agreement, (c) submission of a fraudulent claim, (d) failure to comply with all the Equipment Repair Program Terms and Conditions, or (e) transfer by Customer without TOTAL360™'s consent (see section B). Failure to act when required will void this Agreement as of the date any requirement was due and not performed. Once voided, the Agreement rights and privileges are forfeited including the validation of any claim and the right to any refund.
ii. In the event Customer elects to cancel this Agreement, no refund of the purchase price is available to the customer. If there is an extenuating circumstance(s), contact Customer Service at 888-806-9360 option 1.
iii. The lien holder may cancel this Agreement for non-payment, repossession, or total loss. A written request for cancellation and documentation verifying the event must be received within (30) days of the cancelable event.
iv. **A pro-rated refund will ONLY be considered in a total loss situation. If a pro-rated refund is available, proof of total loss will be required within thirty (30) days of the total loss event.** In the case of a lien holder cancellation, the lien holder will be named on the pro-rated refund check. TOTAL360™ will refund a pro-rated portion of the Agreement charge TOTAL360™ received less an Administration Fee and the percentage for the number of days in force from the Agreement Date. TOTAL360™ will also deduct a claims administration fee per processed claim(s) and the amount TOTAL360™ contributed toward any paid claim(s).

Customer's Initials:

This is a copyright protected document. © 2024

J. DISPUTE RESOLUTION: This Agreement shall be governed by and in accordance with the laws of the State of North Carolina, USA without regard to conflict of law principles. In the event of any dispute between parties arising out of or related to this Agreement in any way, including for breach of this Agreement, the dispute shall be settled by arbitration administered by the American Arbitration Association (AAA). Either party may submit a Demand for Arbitration to the AAA. Arbitration is the sole method of dispute resolution between parties for arbitrable claims. Arbitration shall be administered in accordance with AAA's Commercial Arbitration Rules. Unless prohibited by law, either party's Demand for Arbitration must be submitted within 90 days of when a claim or any portion of the claim is denied, or 90 days from any other conduct on which the dispute is based. An arbitration demand is made by sending the Demand for Arbitration to AAA, with a copy to the other party. The arbitration will be heard by a single arbitrator selected by AAA. The arbitrator shall have the power to rule on his or her own jurisdiction, including any objections with respect to the existence, scope, or validity of the arbitration agreement or the arbitrability of any claim or counterclaim. THE PARTIES WAIVE THEIR RIGHT TO A JURY TRIAL AND WAIVE ALL RIGHTS TO SERVE AS A CLASS REPRESENTATIVE OR RECEIVE ANY PART OF A CLASS RECOVERY. Each of the parties will pay equally all arbitration fees and arbitrator compensation. The in-person arbitration hearing will take place only in Mecklenburg County, North Carolina, USA unless both parties agree in writing to a different hearing location. A decision from the arbitrator(s) will be binding and final. The determination and award of the arbitrator(s) may be filed by the prevailing party in a court of proper jurisdiction and shall thereafter have the full force and effect of a judgment at law. This arbitration provision contains mutual benefits and is binding upon all parties, their successors, and assigns. This arbitration provision will survive bankruptcy and will survive any termination, amendment, expiration, or performance of this Agreement. If any portion of this arbitration provision is held invalid, the remainder shall remain in effect. The parties agree that any action, suit, or proceeding arising out of or related to this Agreement in any way, not submitted to arbitration, shall be instituted only in the state or federal courts located in Mecklenburg County, North Carolina, USA.

K. WHAT IS NOT COVERED: This Agreement does not cover and shall not be liable for:

i. Damage resulting from the failures of related components but not limited to unless otherwise listed in Section. A: actuators; bolts; charge air cooler duct work; clamps; connectors; EGR valves linkages; electronic control devices; external fittings; external oil coolers and lines; fasteners; hydraulic clutch master; jake brakes; linkage; manual or automatic transmission clutch-disc(s); mounts; oil, fuel or coolant lines; pressure plate; radiators; seals and gaskets; shift levers; slave cylinder(s); sliding clutch(es); thermostat; and throw out or pilot bearing; vacuum controls; VPod and waste gates are not covered (unless otherwise listed). Coverage listed does not include: any related electrical system or electrical component contamination, or corrosion.

ii. Any malfunction, damage, or wear caused by faulty installation, misapplication, abrasion, inadequate or improper maintenance, negligence, tampering, or substitution of component parts.

iii. The improper design, manufacture, installation, operation or maintenance of structures. The use of improper accessories, equipment or materials not approved by OEM.

iv. Component malfunction due to contamination or corrosion. Wear and tear, excessive oil consumption, loss of compression, overheating, and/or the gradual reduction in operating performance are not covered unless and until the manufacturer's limits are surpassed.

v. A vehicle if it has a salvage title or is a non-U.S. or Canadian specified vehicle.

vi. Shop materials (unless otherwise listed) or hazardous waste disposal charges or costs covered by any warranty of the manufacturer.

vii. State required dealer warranty, a repairer's guarantee, or costs incurred to improve operating performance if the components are within manufacturer's tolerance or specification. This includes but is not limited to manufacturer or aftermarket up-grades or design changes, valve and ring repairs designed to improve engine compression, reduce oil consumption, or to remove sludge or carbon deposits, and improvements for diminished performance.

viii. Failure caused by or involving modification(s) or alteration(s) made to the vehicle that was not performed by the Original Equipment Manufacturer or selling dealer. Examples include but are not limited to: emission control, exhaust system, and engine modifications.

ix. Continued operation of an impaired vehicle. Any estimate will be required by the Authorized Administrator and any coverage, if applicable, will be limited to the initial failed component. Part(s) only. No coverage for progressive damage or undiagnosed failures.

x. Operating the vehicle without proper levels of fluids, lubricants or coolants, or using improper or contaminated fluids.

xi. Failure of a non-covered part; Failure caused by non-covered parts.

xii. Failure caused by corrosion, rust, dirt, dust, or debris.

xiii. Any loss or breakdown resulting from racing or other competitive driving, operator error, accident/collision, fire, theft, vandalism, riot, war, lightning, earthquake, windstorm, hail, water, freezing, flood, salt, environmental damage, or Acts of God is not covered.

xiv. Incidental or consequential loss or damage, loss of time and use, inconvenience, profits or wages, towing expense, lodging, meals, and storage resulting from a breakdown.

xv. Any liability or property damage, injury or death of any person, punitive or exemplary damage, and/or attorney fees arising out of the operation or use of the vehicle.

xvi. If the odometer or ECM has been stopped, altered, or misrepresents the vehicle's actual miles/km/hours. Factory ECM parameters, codes, warning systems, and alarms cannot be altered and must be in working order at all times while this Agreement is in effect.

xvii. Abuse, misuse, spin-out, shock load, over-rev, overloading or hauling that exceeds the manufacturer's recommendations for the vehicle.

xviii. A pre-existing breakdown, failure, or an improper prior repair whether performed prior to purchase or sale date. These conditions may not have been known to the parties at time of the vehicle sale.

xix. Vehicles being used for rental without prior written authorization from the Authorized Administrator.

This is a Commercial Equipment Repair Program as defined by the Magnuson-Moss Act of 1975 and is not subject to State Insurance Laws but is regulated by State Laws governing commercial limited warranties. This Agreement gives you specific legal rights and you may also have other rights which vary from state to state or province.

Customer's Initials:

This is a copyright protected document. © 2024